

HOUSE No. 5478

Substituted by the House, on motion of Mr. Walsh of Peabody, for a bill with the same title
(House, No. 5471)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing municipalities to opt-in to a temporary pilot to extend the hours of liquor licenses and to allow for public consumption in designated districts in summer 2026.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith municipalities to opt-in to a temporary pilot to extend the hours of liquor licenses and to allow for public consumption in designated districts, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. For purposes of this act, “licensed establishment” shall mean an
2 establishment holding a license for the sale of alcoholic beverages, whether all alcohol or wines
3 and malt only, to be drunk on the premises pursuant to section 12 of chapter 138 of the General
4 Laws.

5 SECTION 2. Notwithstanding any general or special law to the contrary, and subject to
6 section 5, a local licensing authority in a city or town may, on a temporary basis not to begin
7 prior to June 8, 2026, allow a licensed establishment to sell alcoholic beverages for off-premises
8 consumption in districts designated pursuant to section 4. Only licensed establishments located

9 within a district designated pursuant to said section 4 may sell alcoholic beverages to be
10 consumed within the district.

11 SECTION 3. Notwithstanding any general or special law to the contrary, and subject to
12 section 5, a licensed establishment may, subject to approval of the local licensing authority, sell
13 alcoholic beverages on-premises for 1 additional hour beyond the time set forth in the
14 establishment's license, but not to exceed 3:00 a.m. for the period of June 8, 2026 until July 31,
15 2026, subject to any applicable local rules or regulations and any conditions placed upon its
16 license.

17 SECTION 4. Notwithstanding any general or special law to the contrary, and subject to
18 section 5, a local licensing authority may designate 1 or more areas in that city or town in which
19 alcoholic beverages are permitted to be consumed in public spaces, subject to such restrictions as
20 the city or town may deem appropriate and only for the period of June 8, 2026 until July 31,
21 2026. Alcohol consumed within a designated district shall be limited to alcoholic beverages sold
22 by participating licensed establishments located within the designated district.

23 SECTION 5. Nothing in this act shall permit a licensed establishment to sell any type or
24 category of alcohol beyond the type or category of alcohol that the licensed establishment is
25 permitted to sell under the license issued to it by the local licensing authority pursuant to section
26 12 of chapter 138 of the General Laws.

27 SECTION 6. This act shall expire on July 31, 2026.